

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

13. CATHERINE GARAVITO V. FRANK GARAVITO

24FL1127

Petitioner filed a Request for Order (RFO) on April 1, 2026, seeking leave to amend the Petition for Legal Separation, to a Petition for Dissolution. Respondent was personally served on April 15, 2026. It is unclear whether Respondent was served with a blank FL-320.

Respondent has not filed a responsive declaration.

The parties are ordered to appear to address the potential defect in service.

TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR.

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14. KELLI JEANCOQ V. RAYMOND LONERGAN

PFL20190708

Respondent filed a Request for Order (RFO) on March 17, 2026, seeking child custody, parenting time, and child support orders. Respondent did not file an Income and Expense Declaration. The parties were not referred to Child Custody Recommending Counseling (CCRC), as there had been a referral within the prior six months. Proof of Service shows Petitioner was mail-served on March 27, 2026.

Petitioner has not filed a responsive declaration.

The court denies Respondent's request to modify the current orders. The court notes there is a Domestic Violence Restraining Order in place, which protects the minor. Respondent has failed to set forth how the Family Code section 3044 presumption has been overcome. Further, Respondent has failed to set forth how the requested modifications would be in the minor's best interest.

As to the request to modify child support, "[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve his or her Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Respondent has failed to file and serve an Income and Expense Declaration. As such, the request to modify child support is denied.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT DENIES RESPONDENT'S REQUEST TO MODIFY THE CURRENT ORDERS. THE COURT NOTES THERE IS A DOMESTIC VIOLENCE RESTRAINING ORDER IN PLACE, WHICH PROTECTS THE MINOR. RESPONDENT HAS FAILED TO SET FORTH HOW THE FAMILY CODE SECTION 3044 PRESUMPTION HAS BEEN OVERCOME. FURTHER, RESPONDENT HAS FAILED TO SET FORTH HOW THE REQUESTED MODIFICATIONS WOULD BE IN THE MINOR'S BEST INTEREST.

AS TO THE REQUEST TO MODIFY CHILD SUPPORT, THE REQUEST IS DENIED DUE TO RESPONDENT'S FAILURE TO FILE AN INCOME AND EXPENSE DECLARATION.